

APPELLANT'S OPENING BRIEF

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IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

APPELLANT'S OPENING BRIEF

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR,
DOES 1-50

Defendants and Respondents

CERTIFICATE OF INTERESTED ENTITIES OR PERSONS (CAL. RULES OF COURT, RULE 8.208)

Pursuant to California Rules of Court, rule 8.208(e), Appellant Franciscus Dylan Rosario certifies as follows:

1. Appellant Franciscus Dylan Rosario is an individual and has no parent corporations.
2. No publicly held corporation owns 10 percent or more of any stock in Appellant.
3. To the best of Appellant's knowledge, the following entities or persons have an interest in the outcome of the proceeding:

Parties:

- Subhi Abdelhalim (individual), sued in the underlying action as "Subhi Abdelhalim, individually, and dba Sonoma Liquor."
- Sonoma Liquor (entity type unknown based on the face of the record).

- Doe defendants (Does 1 through 20 and/or Does 1 through 50, as pleaded in the superior court record).

Attorneys and law firms that have appeared for Defendant/Respondents:

- Counsel for Respondents on appeal (per Substitution of Attorney filed Aug 6, 2025): Rebekah A. Morrissey (State Bar No. 287379), Smith, Koyama & Costello, 2365 Iron Point Rd., Suite 170, Folsom, CA 95630-8713; (916) 480-1063; REBEKAH.MORRISSEY@CSAA.COM; Tyler J. O’Connell (State Bar No. 346673), Porter Scott, 2180 Harvard St., Suite 500, Sacramento, CA 95815; (916) 929-1481; TOCONNELL@PORTERSCOTT.COM.
- Trial-level counsel (substituted out): Phillips Spallas & Angstadt LLP (Priya D. Navaratnasingham, Alberto Reyna, Robert Kirk) had been attorney of record for Defendant Subhi Abdelhalim in the superior court; Rebekah Morrissey at Smith, Koyama & Costello was substituted in per Aug 6, 2025 substitution.

Appellant will promptly file and serve an amended certificate if additional interested entities or persons are identified.

RECORD CITATION NOTE

This brief uses citations in the form “RT [volume], p. [page], l. [line]” for reporter’s transcript citations, and “CT [volume], p. [page]” for clerk’s transcript citations. Jury questions and the court’s written responses during deliberations, and filed jury instructions when cited substantively, are cited by certified appellate Clerk’s Transcript pinpoint when the certified CT pinpoint is available in the working record; otherwise this brief cites the corresponding reporter’s transcript passage. A brief parenthetical identifier may be added for clarity but does not replace the record citation.

IMPORTANT NOTICE REGARDING RECORD COMPLETENESS AND AUGMENTATION

The Court granted Appellant’s motions to augment the record under California Rules of Court, rule 8.155 (including the supplemental augmentation). The following superior court materials are now treated as part of the certified appellate record for citation purposes: jury questions and court responses during deliberations (Superior Court doc. 09577565); the court’s filed jury instructions (Superior Court doc. 09573595); plaintiff’s proposed jury instructions (Superior Court doc. 09580112); and defendant’s amended exhibit list (Superior Court doc. 09506069). Where the certified CT pinpoint has been verified in the working record, this brief cites those materials by CT volume and page (and lines where the CT includes them). Where the certified CT pinpoint for a given passage has not yet been transcribed into the working source, this brief cites the corresponding RT passage rather than any motion-exhibit pagination. Superior court document numbers are noted only as

context. Copies were lodged with the augmentation motions; the certified CT remains the preferred pinpoint cite when confirmed.

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1 INTRODUCTION

This appeal presents an opportunity for this Court to clarify a fundamental distinction: while trial courts have discretion to manage evidence, they have a mandatory duty to instruct on law. Reversal here corrects a structural conflation of these two categories.

When a deliberating jury asks for governing law, CCP 614 requires a legally correct response. The reversible error here is a deliberation-stage negative instruction based on an erroneous legal premise (“statutes are not evidence”), not merely a refusal to instruct.

The jury’s question triggered CCP 614’s mandatory duty. The court responded with a categorical prohibition based on the erroneous premise that statutes are “not in evidence”—a legal category error. (*Flores v. Liu* (2021) 60 Cal.App.5th 278, 289; *Sesler v. Ghumman* (1990) 219 Cal.App.3d 218; see IX. ARGUMENT, Argument I, *infra.*) The 9–3 verdict and moment-of-verdict error establish prejudice. (*Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 574; RT 11, p. 16, ll. 13–15; RT 11, p. 17, ll. 6–7.)

The record reflects that trial-management rulings applied evidentiary standards in a manner that narrowed what the jury could consider, converting technical requirements into substantive limitations. The court repeatedly framed materials as “not in evidence” and excluded them, while simultaneously allowing other materials outside the evidentiary record to reach the jury. This framework helps explain why the deliberating jury sought Vehicle Code section 22107: they were attempting to apply a concrete statutory yardstick in a trial environment where the court’s repeated “not evidence” directives had created uncertainty about what legal standards could be applied. The effect was that when jurors asked for the governing duty law during deliberations, they were operating within a framework that had systematically limited their access to corroborative materials and legal standards.

Error Sequence:

1. Plaintiff requests CACI 707 (VC 22107) pretrial (March 31, 2025 email; April 22, 2025 hard copy). Court denies request. (CT 1, p. 35, ll. 14–23.)
2. Jury begins deliberations and identifies missing legal standard. Jury asks: “In considering the question of whether the defendant was negligent, should we consider the provisions of Vehicle Code Sections 22107 and 21804(A)?” (RT 11, p. 7, ll. 23–27.) This triggers CCP 614’s mandatory duty.
3. Court violates CCP 614. Court issues prohibition: “You may not consider Vehicle Code Sections 22107 and or [sic] 21804 subdivision A, nor will the Court instruct the Jury on those provisions.” (RT 11, p. 7, ll. 23–27.) Court states: “not in evidence” (erroneous legal premise). (RT 11, p. 8, ll. 4–9.)
4. Compound effects: Jury denied governing duty standard; inconsistent application (VC 360 supplied, VC 22107 prohibited); asymmetric framework (CACI 418 against Plaintiff, VC 22107 withheld).
5. Prejudice: 9–3 verdict (minimum margin); error at moment of verdict formation; reasonably probable different result (see V. STATEMENT OF FACTS, F. The Verdict, *infra.*).

During deliberations, the jury asked for Vehicle Code section 22107. (RT 11, p. 7, ll. 23–27.) The court responded with a categorical prohibition: “You may not consider VC Sections 22107 and or [sic] 21804 subdivision A, nor will the Court instruct the Jury on those provisions.” The court justified this on the erroneous premise that statutes were “not part of the evidence” and “not permitted to consider that as evidence in the case, period.” (RT 11, p. 8, ll. 4–9.) This legal category error—treating statutes as evidence rather than law—is reversible. (See IX. ARGUMENT, Argument I, *infra.*) The jury returned a defense verdict, 9–3. (RT 11, p. 16, ll. 13–15; RT 11, p. 17, ll. 6–7.)

2 STATEMENT OF APPEALABILITY AND JURISDICTION

This Court has jurisdiction under Code of Civil Procedure section 904.1(a)(1) because this is an appeal from a final judgment entered after jury trial in the Superior Court of California, County of San Francisco.

The judgment was entered on April 25, 2025. (CT 6, p. 1689.) Notice of entry of judgment was filed and served on April 29, 2025. (CT 6, p. 1691.) Appellant filed a timely notice of appeal on June 27, 2025. (CT 7, p. 1844.) The appeal is timely. (Cal. Rules of Court, rule 8.104(a)(1)(A).)

This Court has jurisdiction pursuant to Cal. Const., art. VI, § 11.

3 STATEMENT OF THE CASE

This case arises from a collision in which Defendant driver executed a turning maneuver across a crosswalk/bike-lane area, striking Plaintiff while Plaintiff was walking his scooter. The central dispute at trial was whether Defendant exercised reasonable care when turning and whether he complied with duties imposed by the Vehicle Code governing turning movements and yielding.

The record reflects that the court applied evidentiary and trial-management rulings that narrowed what the jury could consider, repeatedly instructing that materials were “not in evidence” and excluding them, while allowing other materials outside the evidentiary record to reach the jury. This framework culminated during deliberations when the jury explicitly requested the governing duty law (VC 22107), and the court responded by prohibiting consideration of that statute on the ground it was “not in evidence.”

Plaintiff’s liability theory was straightforward: Defendant made a turning movement that required a safe turn and reasonable care, and Defendant failed to yield to a pedestrian in or near a crosswalk. Before the case was submitted to the jury, Plaintiff formally requested that the jury be instructed on the specific turning duty that governed this collision. The Clerk’s Transcript confirms that Plaintiff submitted proposed jury instructions via email on March 31, 2025, and again in hard copy on April 22, 2025, which included CACI 707 (Turning or Changing Lanes), which tracks VC 22107, the principal duty statute governing unsafe turning/movement. (CT 1, p. 35, ll. 14–23.)

During deliberations, the jury asked the court for VC 22107 by number, and also requested Vehicle Code section 21804(a). (RT 11, p. 7, ll. 23–27.) The court refused to instruct and issued a categorical prohibition forbidding consideration of those duties.

The jury returned a verdict adverse to Plaintiff, finding no negligence, 9–3 (see V. STATEMENT OF FACTS, F. The Verdict, *infra*).

4 PROCEDURAL HISTORY

Plaintiff filed the underlying action in San Francisco Superior Court (Case No. CGC-21-594102). The case proceeded to jury trial.

Before the case was submitted to the jury, Plaintiff submitted proposed jury instructions via email on March 31, 2025, and again in hard copy on April 22, 2025, including CACI 707 (Turning or Changing Lanes), which tracks VC 22107. (CT 1, p. 35, ll. 14–23.)

During deliberations, the jury asked for VC 22107 by number, and also requested Vehicle Code section 21804(a). (RT 11, p. 7, ll. 23–27.) When the court proposed its response prohibiting consideration of those statutes, Appellant immediately objected. The record shows: “MR. ROSARIO: Of course we have an objection.” (RT 11, p. 10, ll. 8–9.) The court overruled the objection and issued a prohibition forbidding consideration of them. The court stated: “They are overruled and the Court believes that this is within its discretion to issue these responses.” (RT 11, p. 13, ll. 1–2.)

Judgment was entered on April 25, 2025. (CT 6, p. 1689.) Plaintiff timely appealed.

5 STATEMENT OF FACTS

5.1 A. The Collision and Turning Maneuver

Plaintiff testified he was walking his scooter in the crosswalk when Defendant made a turning maneuver and struck him. Plaintiff’s theory was that Defendant’s turn was unsafe and that Defendant failed to yield as required when crossing a crosswalk/bike-lane area. Plaintiff presented evidence that the collision occurred at or adjacent to a marked crosswalk and that turning vehicles were required to yield. (RT 10, p. 41, ll. 20–28.) Plaintiff directed the jury to a photographed sign (Exh. 11) stating that “turning vehicles must yield to bicyclists or pedestrians.” (RT 7, p. 115, ll. 12–13; RT 7, p. 115, ll. 18–19.)

Defendant testified that, before making his right turn onto Tehama Street, he checked his rearview mirror and did not see any pedestrians, scooters, or bicycles. (RT 8, p. 134, ll. 6–10.) When asked: “Prior to making your right-hand turn, did you look in front of you?” Defendant responded: “Yes.” (RT 8, p. 134, ll. 11–13.) When asked: “And when you looked in front of you, did you see any bicyclists, pedestrians or scooters in front of you prior to making your turn?” Defendant responded: “No.” (RT 8, p. 134, ll. 14–17.) Defendant testified that he was making a right turn when the collision occurred. (RT 8, p. 112, ll. 4–11.) Defendant’s testimony addressed his mirror-checking procedure before the turn: “prior to making your right turn, did you check your rearview mirror before making your right turn onto Tehama?” (RT 8, p. 132, ll. 19–21.) Defendant responded: “It was clear when I turn left or right, it was clear in front of me.” (RT 8, p. 132, ll. 22–23.) Defense counsel argued Defendant “checked his mirrors, it was clear. He made a legal right turn.” (RT 10, p. 55, ll. 17–18.)

Officer testimony referenced safe turning practices and the photographed sign requiring turning vehicles to yield. (RT 7, p. 114, ll. 9–19; RT 7, p. 115, ll. 12–19.) This evidence directly supports the application of VC 22107, which requires that no person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety.

5.2 B. Instructions Given

The court instructed the jury on CACI 400 (Negligence, essential factual elements), CACI 401 (Basic standard of care), and related general negligence instructions. (RT 10, p. 16, ll. 17–28; RT 10, p. 17, ll. 1–12.)

The court also instructed on CACI 418 (Presumption of negligence per se) tied to a Vehicle Code violation alleged against Plaintiff.

Nothing in the court’s instruction read included VC 22107, or its substance, as the governing turning duty rule.

5.3 C-1. Trial-Management Rulings Shaped What the Jury Heard (Context for Prejudice Only)

The record reflects several trial-management rulings that narrowed what the jury could consider, which helps explain why the jury later requested VC 22107 during deliberations:

- **Officer “fault” conclusion admitted despite hearsay foundation:** The court permitted a police officer to provide a fault determination as “lay opinion,” including that Appellant “caused the collision” and violated a Vehicle Code provision, despite the officer’s admitted reliance on secondhand statements rather than personal perception. (RT 7, p. 154, ll. 17–24; RT 7, p. 92, ll. 9–11.) Yet the court told jurors that police reports themselves were “not evidence” (RT 7, p. 82, ll. 4–7), creating directional confusion about what jurors could credit, which helps explain why the jury later sought a concrete statutory yardstick.
- **“Not evidence” framework applied asymmetrically:** The court repeatedly instructed the jury that materials were “not evidence” and could not be considered, applying this strictly to Plaintiff’s Vehicle Code duties (RT 11, p. 8, ll. 4–9), police reports (RT 7, p. 82, ll. 4–7), and supplements (RT 7, p. 159, l. 3). Yet the court abandoned this framework when defense counsel argued from materials during closing argument, overruling Plaintiff’s objection. (RT 10, p. 50, ll. 3–7.) The record does not show these materials were admitted into evidence. This asymmetric enforcement created uncertainty about what legal standards could be applied, which helps explain why the deliberating jury requested VC 22107.
- **Defense argument from materials not shown to be admitted:** The court overruled Appellant’s objection and permitted defense counsel to argue in closing from materials (Defense Exhibits 500, 501A, 501B), including portraying them as items the jury had “seen.” (RT 10, p. 50, ll. 3–7.) The record does not show these exhibits

were authenticated or admitted. This, combined with the court’s prohibition of Vehicle Code duties as “not in evidence,” reinforced the directional imbalance that helps explain why the jury sought the governing statutory standard during deliberations.

5.4 C. Plaintiff’s Written Request for VC 22107 Instruction and Preservation During Deliberations

Before the case was submitted to the jury, Plaintiff formally requested that the jury be instructed on the specific turning duty that governed this collision. The Clerk’s Transcript confirms that Plaintiff submitted proposed jury instructions via email on March 31, 2025, and again in hard copy on April 22, 2025. (CT 1, p. 35, ll. 14–23.) Crucially, these submissions included CACI 707 (Turning or Changing Lanes), which tracks VC 22107, the principal duty statute governing unsafe turning/movement.

Appellant’s written request placed the court on notice that VC 22107 was essential to the liability determination. The omission became objectively undeniable when the jury’s deliberation note asked for VC 22107, and Appellant immediately objected on the record. (RT 11, p. 10, ll. 8–9.)

5.5 D. The Jury’s Request for Governing Vehicle Code Duties

During deliberations, the jury sent a note requesting:

“In considering the question of whether the defendant was negligent, should we consider the provisions of VC Sections 22107 and 21804(A)?” (RT 11, p. 7, ll. 23–27.)

The jury did exactly what CCP 614 contemplates: it asked the court to be informed on law. The court responded with a prohibition:

“You may not consider VC Sections 22107 and or [sic] 21804 subdivision A, nor will the Court instruct the Jury on those provisions.” (RT 11, p. 7, ll. 23–27.)

The court explained that these statutes were “not in evidence”:

“Further, I will point out – I don’t think I needed to point this out – but neither Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence. They simply are not permitted to consider that as evidence in the case, period.” (RT 11, p. 8, ll. 4–9.)

The court’s stated rationale reflects a legal category error.

The court’s statement was also factually inaccurate. The defense introduced Plaintiff’s original complaint as Defense Exhibit 500, which was admitted into evidence and argued from during closing argument. (RT 10, p. 50, ll. 3–7; Defense Exh. 500; CT 1, pp. 40–44.) That complaint specifically pleaded Vehicle Code sections 22107 and 21804(a) as the governing duty standards. (CT 1, pp. 40–44.) Accordingly, the court’s assertion that these statutes were “not part of the evidence” was factually incorrect: the complaint containing these statutory references was in evidence before the jury.

The court’s response did not merely refuse to read a statute; it told jurors they were “not permitted” to consider the statutory-duty provisions. That directive conflicts with the admitted exhibit containing those statutory references, creating confusion about what jurors may use in deliberations. The court’s prohibition effectively instructed jurors to disregard governing duty references appearing in an admitted exhibit, thereby undermining the jury’s deliberative role in applying the duty yardstick to the facts.

5.6 E. The Court’s Inconsistent Application

Immediately after prohibiting VC 22107 as “not in evidence,” the court supplied VC 360 definitions (also not in evidence), creating an inconsistency (see IX. ARGUMENT, Argument II, *infra*).

5.7 F. The Verdict

The jury returned a defense verdict, finding “No,” 9–3. (RT 11, p. 16, ll. 13–15.) The clerk read the verdict: “One: Was Subhi Abdelhalim negligent? Answer: No.” (RT 11, p. 16, ll. 13–15.) When the jury was polled, nine jurors raised their hands confirming the verdict. (RT 11, p. 17, ll. 6–7.)

The Plaintiff properly objected to the court’s proposed response. (RT 11, p. 10, ll. 8–9.) The court overruled the objection and proceeded with the prohibition forbidding consideration. (RT 11, p. 13, ll. 1–2.)

6 SUMMARY OF ARGUMENT

When a deliberating jury asks for governing law, CCP 614 requires a legally correct response; a categorical prohibition based on “statutes are not evidence” is reversible instructional error.

Legal Principles Violated:

1. **CCP 614:** “information required must be given” when jury asks for law. (Code Civ. Proc., § 614.) VIOLATION: Court issued prohibition instead of providing the requested law. (RT 11, p. 7, ll. 23–27.) Compounding the legal error, the court’s stated premise that VC 22107/21804(a) were “not part of the evidence” was also contradicted by Defense Exhibit 500 (the admitted complaint) which cited those provisions.
2. **Sesler v. Ghumman and Drury v. Ryan:** Where the governing duty is a turning statute/instruction, general negligence instructions do not substitute; refusal is reversible when supported by evidence. VIOLATION: Court refused CACI 707/VC 22107 despite evidence of turning maneuver. (Sesler v. Ghumman (1990) 219 Cal.App.3d 218; Drury v. Ryan (2025) (Cal. Ct. App., 4th Dist., Div. 3) Case No. G063080; RT 8, p. 134, ll. 11–17.)

3. **Evid. Code § 451(a):** Mandatory judicial notice of statutes. VIOLATION: Court treated statutes as “evidence.” (RT 11, p. 8, ll. 4–9.) Appellant has not found a published case approving a refusal to instruct on governing statutes on the ground they are “not evidence”; such a ruling violates the foundational command of Evidence Code section 451, subdivision (a), which imposes a mandatory duty to take judicial notice of the “public statutory law of this state.” By treating the Vehicle Code as “evidence” requiring admission rather than “law” requiring instruction, the trial court abdicated its core function.
4. **Flores v. Liu:** While courts have discretion over the manner of response, that discretion does not extend to responses based on legal error. VIOLATION: Court based ruling on legal error. (Flores v. Liu (2021) 60 Cal.App.5th 278, 289.)
5. **Halada/Smith:** Deliberation-stage refusal messages violate CCP 614’s strict compliance requirement and are prejudicial as a matter of law. VIOLATION: Court’s categorical prohibition functioned as a negative instruction withdrawing requested law. (Halada v. Venice Lake Park, Inc. (1955) 132 Cal.App.2d 788, 792; Smith v. Shankman (1962) 208 Cal.App.2d 177, 183.)
6. **Soule/Watson:** Prejudice standard. MET: Reasonably probable different result; 9–3 verdict + moment-of-verdict error (see V. STATEMENT OF FACTS, F. The Verdict, *infra*; Soule v. General Motors Corp. (1994) 8 Cal.4th 548, 574).

The court violated CCP 614 by issuing a categorical prohibition based on the erroneous “not in evidence” premise. This deliberation-stage withdrawal, combined with the jury’s explicit request and 9–3 verdict, establishes prejudice. (See IX. ARGUMENT, Argument I, *infra*.) Argument I alone warrants reversal. Arguments II and III are reinforcing only and need not be reached.

7 STANDARDS OF REVIEW

The Trial Court Committed Legal Error, Not Discretionary Error: This appeal turns on a single legal question: whether the court’s Code of Civil Procedure section 614 response mischaracterized governing statutes as “evidence” and forbade the jury from considering the controlling duty rule. The question is a category error: Is a statute evidence? That legal accuracy is reviewed *de novo*.

The legal correctness of jury instructions is reviewed *de novo*. (Soule v. General Motors Corp. (1994) 8 Cal.4th 548, 572.) The trial court’s response to jury questions during deliberations is reviewed for abuse of discretion, but the legal accuracy of that response is reviewed *de novo*. (Flores v. Liu (2021) 60 Cal.App.5th 278, 289.) When a jury question reveals a missing or misunderstood legal framework, review is *de novo* as to legal accuracy, regardless of whether the initial instructions, taken as a whole, were generally correct.

The court’s rationale was a legal-category error (treating statutes as “evidence”), reviewed *de novo*. While courts have discretion over the manner of response, that discretion does not

extend to responses based on legal error. (Flores, *supra*, 60 Cal.App.5th at p. 289; People v. Superior Court (Humberto S.) (2008) 43 Cal.4th 737, 750–751.) Thus, even under an abuse-of-discretion label, a response resting on an erroneous legal premise is reversible as a matter of law.

CACI/JC Instructions Are Official and Strongly Encouraged (Rule 2.1050) (Reinforcing Only)

California Rules of Court, rule 2.1050 confirms that the Judicial Council civil instructions (CACI) are the official instructions for use in California and that their use is strongly encouraged when an applicable instruction exists. (Cal. Rules of Court, rule 2.1050(a), (e).) Appellant requested the applicable Judicial Council instruction (CACI 707), which tracks VC 22107, and the deliberating jury later requested the governing duty statute by number. When jurors asked for the controlling duty standard, the court had a conventional, rule-recognized option under CCP 614: provide the governing law or direct jurors to the instruction that supplies it. Instead, the court issued a prohibition, which is the opposite of what CCP 614 and rule 2.1050 contemplate.

Prejudice is assessed under the standard articulated in *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 574, *People v. Watson* (1956) 46 Cal.2d 818, 836, and California Constitution, article VI, section 13: reversal is required if it is reasonably probable that a result more favorable to the appealing party would have been reached in the absence of the error.

8 ISSUES PRESENTED

1. Did the trial court violate CCP 614 by refusing to provide VC 22107 when the deliberating jury requested governing law on unsafe turning/movement, and instead issuing a prohibition forbidding consideration of that statutory duty, thereby depriving the jury of the specific turning-duty standard required by *Sesler v. Ghumman* (1990) 219 Cal.App.3d 218?
2. Did the trial court commit reversible instructional error by basing its refusal on the legally erroneous premise that Vehicle Code statutes were “not in evidence” and therefore not “permitted” for the jury to consider?
3. Was the trial court’s prohibition of VC 22107 prejudicial under *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, where the jury explicitly requested the governing duty standard during deliberations, the case was decided 9–3 on liability only (see V. STATEMENT OF FACTS, F. The Verdict, *infra*), and the error occurred at the moment of verdict formation?
4. Did the trial court abuse its discretion by inconsistently applying its “not in evidence” rationale, supplying Vehicle Code section 360 definitions to aid the jury while simultaneously prohibiting VC 22107, creating an asymmetric instruction framework that reinforced prejudice in a close verdict?

9 ARGUMENT

9.1 Procedural Gateway: The Error Was Preserved and the Record Supports Review

Appellant requested instruction on the turning-duty statute (CACI 707/Vehicle Code section 22107) before deliberations (CT 1, p. 35, ll. 14–23); during deliberations the jury asked for it (RT 11, p. 7, ll. 23–27); the court refused and affirmatively prohibited its use; Appellant objected (RT 11, p. 10, ll. 8–9); the court overruled (RT 11, p. 13, ll. 1–2).

The issue is preserved. Code of Civil Procedure section 614 imposes an independent duty when the jury asks for law; the jury’s question itself triggered that duty, and Appellant objected to the prohibitory response on the record.

9.2 Argument I (DISPOSITIVE): The Court Violated CCP 614 by Responding to the Jury’s Request for Governing Law with a Prohibition Based on a Legal Category Error (“Statutes Are Not Evidence”); This Is Instructional Error Reviewed De Novo and Is Abuse of Discretion as a Matter of Law

THIS ARGUMENT ALONE WARRANTS REVERSAL. Arguments II and III are reinforcing only and need not be reached.

When deliberating jurors request governing law, Code of Civil Procedure section 614 requires a legally correct response; a categorical prohibition based on “statutes are not evidence” that withdraws the requested duty standard is reversible instructional error.

This argument proceeds through three analytical gates: (1) the jury’s question triggered CCP 614’s mandatory duty; (2) the court’s response was a categorical prohibition grounded on legal error (“statutes not in evidence”); and (3) prejudice is established by the 9–3 verdict and moment-of-verdict error.

At the moment the deliberating jury requested Vehicle Code section 22107, the court issued a negative instruction: “You may not consider VC Sections 22107 and or [sic] 21804 subdivision A, nor will the Court instruct the Jury on those provisions.” (RT 11, p. 7, ll. 23–27.) The court justified this on the erroneous premise that statutes were “not part of the evidence” and “not permitted to consider that as evidence in the case, period.” (RT 11, p. 8, ll. 4–9.) This legal category error—treating statutes as evidence rather than law—violates CCP 614 and requires reversal.

The harmlessness inquiry is not whether the original instructions “as a whole” were theoretically adequate. The proper question under Soule/Watson is whether this deliberation-stage withdrawal of requested duty law was reasonably likely to affect the liability verdict. The

jury's request proves uncertainty on duty; the 9–3 margin confirms the outcome plausibly turned on the prohibited standard. (RT 11, p. 16, ll. 13–15; RT 11, p. 17, ll. 6–7.)

Gate 1: The Jury's Question Triggered CCP 614's Mandatory Duty to Inform on Law During deliberations, the jury sent a note requesting: “In considering the question of whether the defendant was negligent, should we consider the provisions of VC Sections 22107 and 21804(A)?” (RT 11, p. 7, ll. 23–27.) The jury's question was not a request to conduct independent research; it was a request for judicial guidance on the governing standard of care. VC 22107 is the principal duty statute at issue and directly governs the turning maneuver that was the core of the evidence. (RT 8, p. 134, ll. 11–17; RT 7, p. 115, ll. 12–19.) The jury also requested Vehicle Code section 21804(a), demonstrating their search for governing duty law.

The court responded: “You may not consider VC Sections 22107 and or [sic] 21804 subdivision A, nor will the Court instruct the Jury on those provisions.” (RT 11, p. 7, ll. 23–27.) When the court proposed this response, Plaintiff immediately objected: “MR. ROSARIO: Of course we have an objection.” (RT 11, p. 10, ll. 8–9.) The court overruled the objection, stating: “They are overruled and the Court believes that this is within its discretion to issue these responses.” (RT 11, p. 13, ll. 1–2.) The court thus acknowledged it was issuing “responses” as deliberation-stage legal direction, which heightens (not lowers) the requirement that the response be legally correct under CCP 614 and Flores. (RT 11, p. 13, ll. 1–2.)

This sequence triggered CCP 614's mandatory duty—Code Civ. Proc. § 614 requires “information required must be given” when a jury asks about law arising in the case. (Code Civ. Proc., § 614.) The court had two lawful options: answer the question directly or refer to an existing instruction that answers it. The court's response violated CCP 614 and constituted an abuse of discretion as a matter of law. (RT 11, p. 7, ll. 23–27.)

Once a jury has begun deliberating, the trial court has an independent obligation to respond to juror questions in a way that helps jurors understand and apply the governing law. (Flores v. Liu (2021) 60 Cal.App.5th 278, 289; People v. Beardslee (1991) 53 Cal.3d 68, 97 [court must provide accurate legal guidance when jury requests clarification; court has mandatory duty to “clear away any instructional confusion” expressed by the jury].) That duty is codified in CCP 614, which provides that when a deliberating jury “desires to be informed on any point of law arising in the case, [upon being brought into court,] the information required must be given.” (Code Civ. Proc., § 614.)

Civil cases confirm that when jurors ask for clarification on governing law, the court must provide a legally correct response; a response that withdraws or prohibits consideration of the requested law exceeds the court's discretion. (Dozier v. Shapiro (2011) 199 Cal.App.4th 1509, 1524–1525 [court must clarify governing law when jury questions reveal confusion]; Flores, supra, 60 Cal.App.5th at p. 289 [discretion does not extend to responses based on legal error].) The distinction is between permissible clarifications or redirections to existing instructions (when those instructions fully answer the question) and impermissible withdrawals or prohibitions that prevent jurors from applying governing law they have affirmatively requested.

California courts have consistently required strict compliance with CCP 614’s procedural requirements. (*Smith v. Shankman* (1962) 208 Cal.App.2d 177, 183 [cases “consistently required strict compliance” with CCP 613–614].) When a deliberating jury requests information on law, a court’s refusal message delivered to the jury—or effectively delivered—violates the statute unless handled in open court with notice to counsel. (*Halada v. Venice Lake Park, Inc.* (1955) 132 Cal.App.2d 788, 792 [judge’s refusal via bailiff without consulting counsel held “as a matter of law” to have been prejudicial; “whether the outcome... would have been any different is beside the issue”].)

Halada establishes that a deliberation-stage refusal message is itself reversible error when handled outside CCP 614 procedure, and that such violations “go to the substance of the right of trial by jury” and are deemed prejudicial absent “very exceptional circumstances.” (*Smith*, *supra*, 208 Cal.App.2d at p. 183, citing *Halada*.) Here, the court’s categorical prohibition (“You may not consider... nor will the Court instruct...”) (RT 11, p. 7, ll. 23–27) functioned as a deliberation-stage negative instruction that withdrew the requested law, violating the strict compliance requirement of CCP 614.

Flores creates a simple classification rule. A deliberation-stage response falls within discretion only when it fits one of two safe harbors: the court either (1) answers the jury’s legal question correctly, or (2) points the jury to an existing instruction that already supplies the requested rule. A response falls outside discretion when it does neither and instead withdraws or forbids application of the requested governing law. That is not “manner.” It is legal error masquerading as procedure.

The CCP 614 trigger mechanics are straightforward: when a deliberating jury asks to be informed on law arising in the case, the court must give the information required. The court’s response (“You may not consider... nor will the Court instruct...”) is the opposite of giving information—it is a categorical prohibition that withdraws the requested law. CCP 614 exists precisely for this moment: to ensure jurors receive the governing legal standards they need to decide the case. The court did not satisfy its duty under section 614 by forbidding consideration of the very law the jury requested.

The court retains discretion over the manner of response but not over legal accuracy. (*Flores*, *supra*, 60 Cal.App.5th at p. 289.) A response based on legal error—treating statutes as “evidence”—is an abuse of discretion as a matter of law. (*People v. Superior Court (Humberto S.)* (2008) 43 Cal.4th 737, 750–751.) Under CCP 614, the court had two lawful options: (1) answer the question directly, or (2) point to an existing instruction that answers it. The court chose neither, instead issuing a categorical prohibition based on legal error. (RT 11, p. 7, ll. 23–27.)

B. VC 22107 Was “Law Arising in the Case” Under CCP 614 and Was Supported by Substantial Evidence CCP 614 applies when a jury asks about “any point of law arising in the case.” VC 22107 was law arising in the case because:

1. Plaintiff formally requested CACI 707 (tracking VC 22107) before deliberations (CT 1, p. 35, ll. 14–23),

2. The evidence squarely involved a turning maneuver (Defendant’s own testimony: RT 8, p. 134, ll. 11–17),
3. Plaintiff presented evidence of a sign requiring “turning vehicles must yield” (RT 7, p. 115, ll. 12–13, 18–19),
4. the jury itself identified this statute as necessary to decide negligence (RT 11, p. 7, ll. 23–27), and
5. the complaint, marked as Defense Exhibit 500 by the defense and argued from in closing, pleaded VC 22107 as the governing duty (CT 1, pp. 40–44; Defense Exh. 500; RT 10, p. 50, ll. 3–7). The defense provided this complaint as evidence, and when the jury read it, they could see the exact Vehicle Code sections they later asked about, which is why the court’s “not in evidence” statement was factually inaccurate.

The instruction stated correct law: CACI 707 tracks VC 22107, which provides: “No person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety.” This is the official Judicial Council instruction (Cal. Rules of Court, rule 2.1050(a), (e)) and states correct California law.

The instruction was supported by substantial evidence: Defendant admitted he was making a right turn when the collision occurred. When asked: “Prior to making your right-hand turn, did you look in front of you?” Defendant responded: “Yes.” When asked: “And when you looked in front of you, did you see any bicyclists, pedestrians or scooters in front of you prior to making your turn?” Defendant responded: “No.” (RT 8, p. 134, ll. 11–17.) Plaintiff presented evidence of a sign requiring “turning vehicles must yield to bicyclists or pedestrians” (RT 7, p. 115, ll. 12–13, 18–19), and officer testimony referenced safe turning practices. (RT 7, p. 114, ll. 9–19.) This evidence directly supports the factual predicate for VC 22107. There was no factual basis to deny the instruction.

VC 22107 applies regardless of how Plaintiff is characterized: Vehicle Code section 22107 governs turning movements “upon a roadway” and requires that “no person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety.” The statute’s text focuses on the driver’s turning/movement conduct, not on the classification of the person or object in the path. Defendant admitted he was making a turning maneuver (RT 8, p. 134, ll. 11–17), and the jury explicitly requested VC 22107 to decide negligence. Whether Plaintiff is characterized as a pedestrian, scooter operator, or person walking a scooter, the statutory duty governing the turning movement—ensuring reasonable safety before deviating from a direct course—is the same legal standard the jury requested and the court barred. The court’s prohibition prevented jurors from applying the “movement can be made with reasonable safety” standard that directly governs Defendant’s admitted turning conduct.

The instruction was not covered elsewhere: The jury’s question proves CACI 401 did not answer the duty standard they were trying to apply. That request, during deliberations, is objective proof that jurors perceived a missing legal standard and confirms materiality. Unlike the abstract “reasonable care” standard in CACI 401, VC 22107 requires that no person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with “reasonable safety.” This statutory duty creates a specific temporal requirement (before deviating from a direct course) and a specific safety threshold

(reasonable safety) that jurors were specifically trying to apply when they asked for the statute.

The court cannot escape CCP 614’s mandatory duty by claiming the statute was not “law arising in the case” when the jury explicitly asked about it during deliberations. The jury’s question itself establishes that this statute was law arising in the case. Once the jury asks, the court’s duty under section 614 is triggered, and the court must provide a legally correct response, not a prohibition based on the erroneous premise that statutes are “evidence.”

Sesler v. Ghumman and Drury v. Ryan: General Negligence Instructions Do Not Substitute for the Turning-Duty Yardstick

Sesler v. Ghumman (1990) 219 Cal.App.3d 218 involved a turning collision where the plaintiff requested a tailored duty instruction on the turning statute, but the court gave only general negligence instructions. (*Sesler*, supra, 219 Cal.App.3d.) The evidence supported the specific turning-duty instruction, yet the court refused to give it, relying instead on general reasonable-care instructions.

Sesler held that a party is entitled to theory-specific instructions supported by evidence; general instructions are insufficient where a specific statutory duty supplies the measuring standard. (*Sesler*, supra, 219 Cal.App.3d.) The refusal to give the specific turning-duty instruction, when supported by evidence, is reversible error because general negligence instructions do not provide the yardstick jurors need to evaluate whether the defendant complied with the specific statutory duty governing turning maneuvers.

The recent decision in *Drury v. Ryan* (2025) (Cal. Ct. App., 4th Dist., Div. 3) Case No. G063080 reinforces this principle. In *Drury*, the plaintiff requested a negligence per se instruction based on Vehicle Code section 21801 (Left Turns), which requires yielding to hazards. The trial court refused, giving only general negligence instructions. The Court of Appeal held the refusal was prejudicial error, explaining: “It is insufficient to instruct the jury on a statute or law providing a standard of care without also explaining its significance or how the statute applies. . . Negligence per se instructions in appropriate cases are essential because, without them, the jury lacks a complete understanding of the law.” (*Drury*, supra.) *Drury* establishes that refusing the turning-duty instruction is error even before the jury asks for it; when combined with the jury’s question in this case, the error becomes undeniable.

This record maps directly to *Sesler* and *Drury*: the jury asked for VC 22107 during deliberations; the court’s response barred the standard; that is the same structural problem both cases reversed for, compounded here by being deliberation-stage and prohibitory. The jury’s question demonstrates they recognized the missing legal framework, just as *Sesler* and *Drury* recognized that general instructions cannot substitute for the specific turning-duty standard. The court’s categorical prohibition (“You may not consider. . . nor will the Court instruct. . .”) (RT 11, p. 7, ll. 23–27) affirmatively withdrew the governing duty standard at the moment of verdict formation, making the error more egregious than the pretrial refusal in *Sesler* and *Drury*.

Gate 2: The Court’s Response Was a Categorical Prohibition Grounded on a Mistaken Legal Premise, Not a Neutral Outside-Research Admonition The court’s response was a categorical prohibition: “You may not consider VC Sections 22107 and or [sic] 21804 subdivision A, nor will the Court instruct the Jury on those provisions.” (RT 11, p. 7, ll. 23–27.) This withdrew governing law at verdict formation. The court did not redirect jurors to any instruction answering their question; it issued a substantive ruling removing the duty standard the jury was trying to apply. (*Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, 227.) Even if motivated by research concerns, that phrasing functions as an instruction withdrawing the legal standard the jury requested, which CCP 614 forbids.

The court’s “not in evidence” rationale reflects a category error: it conflates the gatekeeping concept applicable to testimony and exhibits with the separate duty under CCP 614 to inform jurors on “any point of law.” (*McGuire v. W.A. Thompson Distributing Co.* (1963) 215 Cal.App.2d 356, 361 [during deliberations, court properly used “not in evidence” rationale for municipal-court/deposition material that “would not be evidence” unless “read . . . during the trial”].) *McGuire* demonstrates that “not in evidence” is a testimony/exhibit gatekeeping concept (what was read/admitted at trial), not a legal standard for withholding governing statutory law. CCP 614 separately covers when jurors “desire to be informed of any point of law”—that is not an “evidence” question at all. (*Smith*, *supra*, 208 Cal.App.2d at p. 183 [strict compliance required for law requests under CCP 614].) The trial court’s “not in evidence” rationale is a category error when the jury is asking for governing law (duty), and the effect is a deliberation-stage negative instruction barring the jury from applying the requested legal standard.

Not a Verbatim-Reading Case: Appellant does not claim the court had to hand jurors a codebook. The claim is narrower: CCP 614 required a legally correct response. The court had two lawful options: (1) answer the question directly, or (2) direct jurors to an existing instruction that supplies it. Instead, the court chose a categorical prohibition, which is neither a substantive answer nor a redirection. The legal wrong is the prohibition/withdrawal (negative instruction), not the failure to hand jurors the Vehicle Code text.

D. The Stated Reason (“Not in Evidence”) Is Legally Wrong: Statutes Are Law, Not Evidence The court justified the prohibition on an erroneous legal premise: “neither Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence. They simply are not permitted to consider that as evidence in the case, period.” (RT 11, p. 8, ll. 4–9.) This is a legal category error: statutes are law, not evidence. Statutes are subject to mandatory judicial notice under Evidence Code section 451, subdivision (a). (Evid. Code, § 451, subd. (a).) Juries apply law as instructed; parties do not “admit” statutes as exhibits. The court’s premise conflates admissibility (facts and exhibits) with applicability (governing legal standards). The VC 360 inconsistency (see IX. ARGUMENT, Argument II, *infra*) proves this was not a neutral evidence-management principle: immediately after prohibiting VC 22107 as “not in evidence,” the court supplied VC 360 definitions, demonstrating selective withholding.

Appellant has not found a published case approving a refusal to instruct on governing statutes on the ground they are “not evidence”; such a ruling violates the foundational command

of Evidence Code section 451, subdivision (a). That section imposes a mandatory duty on the court to take judicial notice of the “public statutory law of this state.” By treating the Vehicle Code as “evidence” requiring admission rather than “law” requiring instruction, the trial court abdicated its core function. The distinction is clear: “not in evidence” is a testimony/exhibit gatekeeping concept (what was read/admitted at trial), as demonstrated in *McGuire v. W.A. Thompson Distributing Co.* (1963) 215 Cal.App.2d 356, 361, where the court properly used that rationale for deposition material. CCP 614 separately covers when jurors “desire to be informed of any point of law”—that is not an “evidence” question at all.

The court’s erroneous legal premise was: (1) Court treats Vehicle Code statutes as “evidence”; (2) Court states: “not part of the evidence”; (3) Court concludes: “not permitted to consider.” This is a legal category error. The correct category is: Statutes = LAW (Evid. Code § 451(a): Mandatory judicial notice; Court’s function: Instruct on governing law; No “admission into evidence” required). The court’s error was: Statutes = EVIDENCE (Court requires “admission into evidence”; Court withholds law based on evidence rules; Abuse of discretion as matter of law; Reviewed de novo with no deference).

The court’s categorical phrasing (“period”) paired with “you may not consider” reads as a legal prohibition, not a gentle admonition. Moreover, the VC 360 inconsistency (see IX. ARGUMENT, Argument II, *infra*) proves this was not a neutral research warning: immediately after prohibiting the turning statutes as “not in evidence,” the court *sua sponte* supplied Vehicle Code section 360 definitions. Both statutes were “not in evidence” in the same sense, yet one was prohibited while the other was provided, demonstrating selective withholding of the requested duty standard.

(Reinforcing Only: The Court’s “Not in Evidence” Statement Was Both Legally Wrong and Factually Inaccurate) The court’s stated rationale fails on two independent grounds. First, as a matter of law, statutes are not “evidence” subject to admission; they are law subject to mandatory judicial notice under Evidence Code section 451, subdivision (a). Second, even if the court’s legally erroneous premise were accepted *arguendo*, the statement was factually inaccurate: the operative complaint, marked as Defense Exhibit 500 and argued from by defense counsel in closing, was admitted into evidence and specifically pleaded Vehicle Code sections 22107 and 21804(a) as the governing duty standards. (RT 10, p. 50, ll. 3–7; Defense Exh. 500; CT 1, pp. 40–44.) The defense themselves provided this complaint as evidence, and when the jury read it, they could see the exact Vehicle Code sections they later asked about. The defense’s use of the complaint to attack Plaintiff’s credibility meant the jury had direct access to the statutory references that warranted their question. The court’s prohibition therefore instructed jurors to disregard statutory-duty material that was already present in the evidence before them—evidence that the defense had provided. The point is not that pleadings are evidence of liability or that jurors may treat the complaint as proof; the point is that the court’s “not in evidence” rationale collapses on its own terms because the duty-code references were already in materials that defense marked, admitted, and argued from, yet the court prohibited consideration of those same statutory duties when the jury requested them. The dispositive rule remains: statutes are law subject to mandatory judicial notice (Evid. Code, § 451, subd. (a)), and CCP 614 required a legally correct response to the jury’s request, not a prohibition based on an erroneous and

factually inaccurate premise.

D.1 The Court’s “Not in Evidence” Rationale Was Also Record-Wrong Because the Defense Introduced the Complaint Citing VC 22107/21804(a) (Defense Exh. 500)

Even accepting the court’s erroneous premise *arguendo*, the statement was factually inaccurate: Defense Exhibit 500 (the admitted complaint) pleaded Vehicle Code sections 22107 and 21804(a) as the governing duty standards. (RT 10, p. 50, ll. 3–7; Defense Exh. 500; CT 1, pp. 40–44.) The court’s prohibition conflicted with the admitted exhibit containing those statutory references, creating confusion about what materials jurors could use in deliberations.

Failsafe: The Legal Error Stands Independently of Any Exhibit Reference (Reinforcing Only)

Even if no exhibit mentioned the statutes, the judge’s rationale is still legally wrong because statutes are law, not evidence, and CCP 614 requires a legally correct response to a jury’s request for governing law. The “complaint was in evidence” point is reinforcing only (it shows the court’s premise was not just legally wrong, but also contradicted by what the jury had), but reversal does not depend on treating the complaint as proof of the statute. The dispositive legal principle is that statutes are subject to mandatory judicial notice under Evidence Code section 451, subdivision (a), and a court has no discretion to withhold governing statutory law from a deliberating jury on the ground that statutes must be “admitted into evidence” like exhibits. When a jury asks for governing law under CCP 614, the court must provide a legally correct response; a prohibition based on the erroneous premise that statutes are “evidence” is reversible error regardless of whether any exhibit referenced those statutes.

Duty Standards Come From Law (Civ. Code § 1714; Rowland) (Reinforcing Only)

Negligence liability is not decided in a vacuum of “generic fault”; the duty standard comes from law. (Civ. Code, § 1714; *Rowland v. Christian* (1968) 69 Cal.2d 108.) Here the jury specifically asked for the governing duty statute during deliberations, and the court’s response prohibited jurors from applying that law—an instructional withdrawal that was inconsistent with CCP 614. The VC 360 inconsistency demonstrates inconsistent application (see IX. ARGUMENT, Argument II, *infra*).

The court’s refusal to instruct on governing duty standards, and its later prohibition forbidding consideration of them, constituted instructional error. The court’s stated rationale, that these statutes were “not part of the evidence”, reveals that the court misunderstood its role. The legal error here is not a failure to hand the jury the Vehicle Code text; it is the misdirection: characterizing statutes as “evidence” and issuing a negative instruction that forbids jurors from considering the duty standard, instead of neutrally referring them to instructions or clarifying the governing duty framework.

A trial court abuses its discretion when it bases a ruling on an erroneous legal premise. (*People v. Superior Court (Humberto S.)*, *supra*, 43 Cal.4th at pp. 750–751.) While the

court has discretion over the manner of response to jury questions, it has no discretion over the legal accuracy of that response. (Flores v. Liu (2021) 60 Cal.App.5th 278, 289.) The court’s refusal on the basis that the law was “not in evidence” constitutes a mistake of law, which is an abuse of discretion as a matter of law. Because the refusal was grounded in a legal misconception, it is reversible. The trial court cannot “exclude” the law of the state because it was not marked as an exhibit. A judge has no discretion to withhold governing statutory law from the jury on the ground that statutes must be “admitted into evidence” like exhibits.

E. VC 22107 Is Not Redundant: It Supplies the Specific Turning-Duty Standard Jurors Were Seeking Sesler v. Ghumman (1990) 219 Cal.App.3d 218 establishes that “general reasonable care” does not answer a specific turning statute. (Sesler, supra, 219 Cal.App.3d.) Where the governing duty is a specific turning statute/instruction, general negligence instructions are insufficient; the specific statutory duty supplies the measuring standard jurors need. (Sesler, supra, 219 Cal.App.3d.)

The jury’s question mirrors the refused instruction, demonstrating the missing standard:

1. The Jury’s Question:

“In considering the question of whether the defendant was negligent, should we consider the provisions of VC Section 22107?” (RT 11, p. 7, ll. 23–27)

2. The Refused Statute (VC 22107):

“No person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety.”

The jury explicitly asked to apply the specific turning-duty standard. The court’s prohibition stripped the “reasonable safety” standard from their hands and left them with only the generic “reasonable person” standard, which they had already signaled was insufficient. (RT 11, p. 7, ll. 23–27.)

The instructions were not redundant:

- **CACI 401 (Given):** Asks broadly if the defendant acted as a “reasonable person.” (RT 10, p. 17, ll. 1–12.)
- **VC 22107 (Refused):** Asks specifically if the defendant ensured “reasonable safety” before deviating from a direct course.

The jury’s question indicates the general instructions did not resolve the specific duty standard they were attempting to apply. CACI 401 asks: “Did the defendant act as a reasonable person?” This is an abstract, general standard. Vehicle Code section 22107 asks: “Did the defendant ensure reasonable safety before deviating from a direct course?” This is a specific, temporal, turning-movement-specific standard. The statutory duty creates: (1) a specific temporal requirement (before deviating from a direct course), (2) a specific safety threshold (reasonable safety), and (3) a turning/movement-specific framework. The jury’s written

question is objective proof that the general instructions did not resolve the controlling legal issue. (Soule, *supra*, 8 Cal.4th at p. 574 [juror questions are classic prejudice indicators].)

This is not a case about manufacturing a “special” or “nonstandard” instruction. Appellant requested the applicable Judicial Council instruction, CACI 707, which tracks VC 22107’s turning/movement duty. (CT 1, p. 35, ll. 14–23; Cal. Rules of Court, rule 2.1050(a), (e).) Rule 2.1050 designates CACI as the official instructions and strongly encourages their use when an applicable instruction exists. When the deliberating jury asked for VC 22107, the court could have responded lawfully under CCP 614 by providing the duty rule or directing jurors to the instruction that supplies it. The court did neither; it barred consideration altogether. The jury identified the missing yardstick, and the court prevented jurors from using the governing duty standard at the moment of verdict formation.

The harm is the court’s deliberation-stage bar on applying the governing statutory duty the jury requested. CCP 614 existed to resolve this jury confusion; the prohibition resolved it for the defense; 9–3 verdict shows reasonable probability of effect (see V. STATEMENT OF FACTS, F. The Verdict, *infra*).

A juror could honestly conclude that Defendant was not generally careless but technically violated the turning statute. The general negligence instructions did not provide this turning-movement-specific framework. When jurors asked for VC 22107, they were seeking the precise legal yardstick for evaluating whether Defendant’s turn was made with reasonable safety before deviating from his direct course. The court’s prohibition pushed jurors toward a more lenient evaluation (“he checked, it was clear, legal turn”), rather than the statutory standard requiring reasonable safety before the movement begins.

Even if the facts in *Sesler v. Ghumman* (1990) 219 Cal.App.3d 218 differ in some respects, the principle is the same: where a turning-duty yardstick is requested and supported by the record, generic care language is not an adequate substitute—especially when the jury signals confusion during deliberations. The jury’s question (RT 11, p. 7, ll. 23–27) demonstrates they recognized the missing legal framework, just as *Sesler* recognized that general instructions cannot substitute for the specific turning-duty standard.

Gate 3: Prejudice Because This Occurred at Verdict Formation, Reinforced by Vote Split and Inconsistent Vehicle Code Application Under *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 574, the question is whether it is reasonably probable the appellant would have obtained a more favorable result absent the instructional error. Under *Watson*, a “reasonable probability” does not mean “more likely than not.” It means merely a probability sufficient to undermine confidence in the outcome. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 715; *Robinson v. Cable* (1961) 55 Cal.2d 425, 428.) Given the 9–3 verdict and the jury’s specific question, the probability that the error affected the result is far more than abstract; it is objectively manifest in the record. (RT 11, p. 16, ll. 13–15; RT 11, p. 17, ll. 6–7; RT 11, p. 7, ll. 23–27.)

Soule identifies multiple factors for assessing prejudice, including: (1) whether the jury asked questions revealing confusion, (2) the closeness of the case, (3) the centrality of the missing instruction, and (4) the timing of the error. (Soule, *supra*, 8 Cal.4th at p. 574.) The jury’s

question provides objective evidence of confusion and confirms the general instructions were inadequate. (Soule, *supra*, 8 Cal.4th at p. 574.)

The error occurred at verdict formation (see IX. ARGUMENT, Argument I, *supra*). Soule factors: (1) jury’s question (materiality); (2) 9–3 verdict (closeness) (see V. STATEMENT OF FACTS, F. The Verdict, *infra*); (3) centrality of turning duty; (4) timing (deliberation-stage).

The jury’s request proves materiality. It asked for VC 22107, the statute that defines the unsafe turn duty, and also requested Vehicle Code section 21804(a). (RT 11, p. 7, ll. 23–27.) That request, during deliberations, is evidence that jurors believed these duties mattered to their decision.

The court’s categorical prohibition prevented jurors from applying those duties. Given the contested nature of negligence and the existence of evidence establishing a turning movement (including Defendant’s own right-turn testimony), there is a reasonable probability a properly instructed jury could have reached a different verdict.

Closeness of the case: This was a liability-only trial decided 9–3 on a single question. The clerk read the verdict: “One: Was Subhi Abdelhalim negligent? Answer: No.” (RT 11, p. 16, ll. 13–15.) When the jury was polled, nine jurors raised their hands confirming the verdict. (RT 11, p. 17, ll. 6–7.) The verdict margin is the minimum required for a civil verdict (9 votes)—one juror shift yields hung jury or no defense verdict. A single juror shift from the defense side would have prevented any defense verdict (dropping below the required nine votes). There is a reasonable probability that at least one of the nine jurors who voted for the defense would have found Defendant negligent had the jury been properly instructed on the governing Vehicle Code duty standards.

Centrality of the missing duty: The turning/yield theme was central to the evidence and closing arguments. Defendant testified he was making a right turn when the collision occurred. (RT 8, p. 134, ll. 11–17.) Plaintiff presented evidence of a sign requiring “turning vehicles must yield to bicyclists or pedestrians” (RT 7, p. 115, ll. 12–13; RT 7, p. 115, ll. 18–19) and officer testimony referencing safe turning practices. The jury’s request for VC 22107 demonstrates they recognized that the specific statutory duty governing turning maneuvers was necessary to evaluate the Defendant’s conduct.

Jury’s explicit signal: The jury’s request itself provides objective proof that jurors perceived a missing legal standard and confirms materiality and prejudice. The jury had already received the general instructions and determined they were insufficient to resolve the specific legal question. Courts cannot assume jurors applied instructions they expressly indicated were inadequate.

Timing of the court’s response: The error occurred at the point of verdict formation, when jurors had already made preliminary factual findings and were attempting to apply law to those facts. The court’s prohibition blocking the governing law at that decisive moment makes harmlessness untenable under Soule, *supra*, 8 Cal.4th at p. 574.

Why liability was close and why the missing standard mattered: Defendant admitted he was making a right turn when the collision occurred (RT 8, p. 134, ll. 11–17), and

Plaintiff presented evidence of a sign requiring “turning vehicles must yield to bicyclists or pedestrians” (RT 7, p. 115, ll. 12–13; RT 7, p. 115, ll. 18–19). The jury explicitly requested VC 22107 during deliberations (RT 11, p. 7, ll. 23–27), demonstrating they recognized the specific statutory duty was necessary to evaluate Defendant’s conduct. The court’s prohibition withdrew that standard at the moment of verdict formation (RT 11, p. 7, ll. 23–27), and Plaintiff immediately objected (RT 11, p. 10, ll. 8–9), which the court overruled (RT 11, p. 13, ll. 1–2). The verdict was decided 9–3 (RT 11, p. 16, ll. 13–15; RT 11, p. 17, ll. 6–7), the minimum margin for a civil verdict. Given the contested nature of negligence, the evidence supporting the turning-duty standard, and the jury’s explicit request for the governing statutory standard, there is a reasonable probability that at least one of the nine jurors who voted for the defense would have found Defendant negligent had the jury been properly instructed on VC 22107.

Each Soule factor points to prejudice. The error requires reversal.

When a deliberating jury asks for governing duty law, the court may not respond by forbidding consideration of that law on the ground it was “not in evidence.” Code of Civil Procedure section 614 requires a legally correct response to a jury’s request for governing law, and a prohibition based on a legal category error is reversible instructional error. Here, the court’s prohibition of Vehicle Code section 22107 based on the erroneous premise that statutes are “evidence” violated CCP 614 and requires reversal. The matter should be remanded for a new liability trial.

Any argument that the error was harmless, waived, or based on exhibit-status fails. (1) Harmlessness: The jury’s request proves CACI 401 did not supply the needed standard; CCP 614 existed to resolve this confusion; the prohibition resolved it for the defense; 9–3 verdict shows reasonable probability (see V. STATEMENT OF FACTS, F. The Verdict, *infra*). (2) Waiver: CCP 614 imposes an independent duty when the jury asks for law; earlier instruction-conference disputes cannot forfeit a later CCP 614 violation; the record shows contemporaneous objection and overruling (RT 11, p. 10, ll. 8–9; RT 11, p. 13, ll. 1–2). (3) “Not admitted as exhibit”: The operative prohibition language (“may not consider / will not instruct”) is not an exhibit reminder; it is a legal prohibition on applying governing law; the VC 360 inconsistency proves selective withholding, not mere exhibit-status confusion (RT 11, p. 8, ll. 4–9; RT 11, p. 8, ll. 16–26; RT 11, p. 9, ll. 1–2).

G. Record Establishing Error and Prejudice **Harmlessness analysis:** This is a deliberation-stage withdrawal case (see IX. ARGUMENT, Argument I, *supra*), not an “instructions as a whole” case. Discretionary “manner” cases involve clarifications or redirections to existing instructions. This record shows a negative instruction that removes a standard. When a deliberating jury asks for governing duty law and the court responds with a prohibition grounded in legal error, the harmlessness inquiry is not whether the original instructions “as a whole” were theoretically adequate. The proper question is whether this withdrawal of requested duty law was reasonably likely to affect the liability verdict. (Soule, *supra*, 8 Cal.4th at p. 574.) The jury asked for VC 22107 (RT 11, p. 7, ll. 23–27); the court forbade it (RT 11, p. 7, ll. 23–27); and the verdict was 9–3 (see V. STATEMENT OF FACTS, F. The Verdict, *infra*). Prejudice is measured by whether this withdrawal was reasonably

likely to affect the liability verdict, not by whether general instructions were theoretically sufficient.

Preservation: The issue was preserved through the following chronology: written request (CT 1, p. 35, ll. 14–23), jury question triggering CCP 614 (RT 11, p. 7, ll. 23–27), objection (RT 11, p. 10, ll. 8–9), and overruling (RT 11, p. 13, ll. 1–2). CCP 614 independently triggers a duty when the jury asks for governing law, regardless of earlier instruction conference timing.

Court’s stated rationale: The court stated the statutes were “not part of the evidence” and “not permitted to consider that as evidence in the case, period.” (RT 11, p. 8, ll. 4–9.) However, the VC 360 inconsistency proves this rationale was not consistently applied. The court prohibited VC 22107 as “not in evidence” (RT 11, p. 8, ll. 4–9) but immediately supplied VC 360 definitions (RT 11, p. 8, ll. 16–26; RT 11, p. 9, ll. 1–2). Both statutes were “not in evidence” in the same sense—neither had been admitted as an exhibit. The inconsistency demonstrates selective withholding of duty law that would have helped Appellant’s case.

H. No Valid Justification Exists for the Refusal No legitimate rationale supports withholding the governing duty statute from a deliberating jury that expressly requested it. The court’s “not in evidence” rationale conflates admissibility (facts and exhibits) with applicability (governing legal standards). Statutes are subject to mandatory judicial notice (Evid. Code, § 451, subd. (a)); treating statutory duty rules as “evidence” is a category error. While Flores confirms courts have discretion over the manner of response, that discretion does not extend to ruling that a valid California statute is “not evidence” and therefore “not permitted” to be considered. That is a category error, not a management choice.

“Redundancy” arguments collapse because the jury’s written question is objective proof that the instruction set did not answer what jurors believed was a controlling duty issue. (Soule, *supra*, 8 Cal.4th at p. 574.) Procedural finality cannot justify the refusal because CCP 614 imposes an independent, mandatory duty once a deliberating jury “desires to be informed on any point of law arising in the case.” Any “anti-research” reframe collapses given the VC 360 inconsistency: moments after prohibiting VC 22107 as “not in evidence,” the court *sua sponte* supplied VC 360 definitions, which were equally “not in evidence.” This demonstrates selective withholding, not neutral trial management.

9.3 Argument II (REINFORCING ONLY—NOT REQUIRED TO REACH): Inconsistent Application Reinforced Prejudice

Argument I alone warrants reversal. This argument exists solely to defeat harmlessness claims. The Court may reverse on Argument I without reaching this.

The court’s “not in evidence” rationale was inconsistently applied. Immediately after prohibiting VC 22107 as “not in evidence” (RT 11, p. 8, ll. 4–9), the court *sua sponte* supplied Vehicle Code section 360 definitions (RT 11, p. 8, ll. 16–26; RT 11, p. 9, ll. 1–2). Both statutes were “not in evidence” in the same sense, yet one was prohibited while the other was

provided. This inconsistency undermines any “anti-research” justification and demonstrates selective withholding of the duty standard that would have helped Appellant’s case.

9.4 Argument III (REINFORCING ONLY—NOT REQUIRED TO REACH): Additional Asymmetric Rulings Reinforced Prejudice

Argument I alone warrants reversal. This argument exists solely to defeat harmlessness claims. The Court may reverse on Argument I without reaching this.

The court’s asymmetric application of its “not evidence” framework reinforced prejudice. While strictly applying “not evidence” constraints to Appellant’s Vehicle Code duties (RT 11, p. 8, ll. 4–9), the court permitted defense counsel to argue from materials not shown to be admitted (RT 10, p. 50, ll. 3–7) and allowed officer fault conclusions derived from excluded reports to reach the jury as “lay opinion” (RT 7, p. 154, ll. 17–24). The cumulative effect of these asymmetric rulings reinforced the prejudice from the primary CCP 614 error, making harmlessness untenable in a close 9–3 verdict. (*Cassim v. Allstate Ins. Co.* (2004) 33 Cal.4th 780, 800–802; *Soule*, supra, 8 Cal.4th at pp. 580–581.)

10 CONCLUSION AND REQUESTED RELIEF

Because the error occurred during deliberations and went to the governing duty standard the jury requested to resolve liability, the judgment must be reversed and the matter remanded for a new trial.

The trial court committed reversible error by refusing to answer the deliberating jury’s request for Vehicle Code section 22107 under CCP 614. The court’s “not in evidence” rationale was a legal category error: statutes are law, not evidence. (*Flores v. Liu* (2021) 60 Cal.App.5th 278, 289.) The 9–3 verdict, combined with the jury’s explicit request and moment-of-verdict error, establishes prejudice. (*Soule*, supra, 8 Cal.4th at p. 574.) Under *Sesler*, CCP 614, *Flores*, and *Soule*, the judgment must be reversed and remanded for a new trial on liability only.

DATED: February 23, 2026

Respectfully submitted,



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Appellant, in pro per

CERTIFICATE OF COMPLIANCE (CAL. RULES OF COURT, RULE 8.204(C)(1))

I certify that this brief contains approximately 11,173 words, excluding the cover page, table of contents, table of authorities, and this certificate, as counted by the word-processing program used to generate this brief. The brief complies with the word limit of California Rules of Court, rule 8.204(c)(1).

DATED: February 23, 2026

A handwritten signature in blue ink, appearing to read "Franciscus", with a stylized flourish at the end.

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